

Sharafat Ulla (since deceased) v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 February 2024 · 2024:AHC:26613-DB · WRIT - C No. - 1904 of 2024 · **Writ disposed; Clause 6.5 objection to be decided in four weeks.**

HEADNOTE

On a challenge to a recovery certificate dated 25 January 2021 and disconnection of supply, the Division Bench disposed of the writ after counsel elected to approach the licensee under Clause 6.5 of the U.P. Electricity Supply Code, 2005, directing that any such objection be decided as expeditiously as possible, preferably within four weeks.

FACTUAL SUMMARY

The petitioner, representing Sharafat Ulla (since deceased), challenged a recovery certificate dated 25 January 2021 issued by Purvanchal Vidhut Vitrana Nigam Ltd. and the disconnection of the petitioner's electricity supply. Before the Division Bench, counsel submitted that the petitioner would instead approach the respondents under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and sought only a direction that that objection be decided with expedition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under Clause 6.5

HOLDING

Where a consumer aggrieved of a recovery certificate and disconnection elects to approach the licensee under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ petition is disposed of with a direction that if such an objection is made, it shall be decided as expeditiously as possible, preferably within four weeks. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 25.1.2021 AND OF THE DISCONNECTION

Court did not examine the merits; relegated the consumer to Clause 6.5. ¶ 1-3